

Ramesh Nath Pandey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 August 2017 · WRIT - C No. 36629 of 2017 · **Writ withdrawn with liberty to raise a Clause 6.5 dispute.**

HEADNOTE

A writ challenging a distribution licensee's notice dated 16.7.2017 was withdrawn after the Court recorded that a dispute under Clause 6.5 of the U.P. Electricity Supply Code, 2005 could be raised against such a notice, with liberty to pursue that remedy.

FACTUAL SUMMARY

Ramesh Nath Pandey filed a writ petition in the Allahabad High Court seeking to quash a notice dated 16 July 2017 issued by respondent no. 2. Counsel for the State and for respondent nos. 2 to 4, the distribution licensee, were heard. The Court recorded that it was not in dispute that a grievance against such a notice could be raised under Clause 6.5 of the Electricity Supply Code, 2005. Confronted with that, the petitioner's counsel sought withdrawal with liberty to pursue that Code remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

notice-dispute-forum

HOLDING

A notice issued by the distribution licensee of the kind dated 16.7.2017 may be challenged by raising a dispute under Clause 6.5 of the Electricity Supply Code, 2005; the writ challenging that notice was withdrawn with liberty to pursue that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE NOTICE DATED 16.7.2017

Petition withdrawn; the Court did not examine the merits of the notice. ¶ 1